

25LBCV01302 25LBCV01302

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-08-25

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Case Number: 25LBCV01302 Hearing Date: August 25, 2026 Dept: S28

BACKGROUND

On April

23, 2025, Plaintiff David Becerra ("Plaintiff") filed a complaint against Defendants Sergio Salazar and Maria Quevedo-Topete ("the Salazars"), New Generation Electric Corp., ARS American Home Services of California Inc. ("ARS"), Jose Rico ("Rico"), and Intelligent Design Solar, Inc. ("IDS") for motor vehicle negligence.

On

April 2, 2026, Rico filed the instant motion for summary judgment.

On

July 10, 2026, ARS filed opposition.

On

July 17, 2026, the Salazars filed opposition.

On

July 24, 2026, Rico filed a reply to the Salazars. As of August 11, 2026, Rico has not filed a reply to ARS.

On

August 11, 2026, the Court identified a numbering error in the separate statements and ordered the parties to file corrected versions. Each party did so.

As

of August 24, 2026, Plaintiff Becerra has not opposed the Motion.

DISCUSSION

Applicable

Law

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party.” (*Aguilar*, *supra*, at pp. 844-845 [quotation marks omitted].)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) “A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc. (“CCP”) § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

Analysis

A. Whether Salazar Was Rico's Employee or an Independent Contractor

“[V]icarious liability for torts is imposed by operation of law upon employers for acts of their employees within the course and scope of employment, or upon principals for the acts of their agents.” (*Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1375.)

As to some Labor Code Provisions, including section 1194 [re paying overtime and minimum wages], the definitions of “employment” [including an entity or individual that “employs or exercises control over the wages, hours, or working conditions of any person”], are based upon common law, and the Industrial Welfare Commission's wage-orders, but not upon federal law. (*Martinez v. Combs* (2010) 49 Cal.4th 35, 65-67. See also *Reynolds v. Bement* (2005) 36 Cal.4th 1075, 1085, 1088 [“the IWC since 1947 has defined ‘employer’ to include an individual who ‘exercises control over the wages, hours, or working conditions of any person.’” (quoting Wage Order No. 9, subd. 2(F))], abrogated on other grounds by *Martinez v. Combs* (2010) 49 Cal.4th 35, 50.)

“There is a rebuttable presumption affecting the burden of proof that a worker performing services for which a license is required. . . or who is performing such services for a person who is required to obtain such a license is an employee rather than an independent contractor.” (Cal. Labor Code § 2750.5.)

“Proof of independent contractor

status includes satisfactory proof of these factors:

(a)

That the individual has the right to control and discretion as to the manner of performance of the contract for services in that the result of the work and not the means by which it is accomplished is the primary factor bargained for.

(b)

That the individual is customarily engaged in an independently established business.

(c)

That the individual's independent contractor status is bona fide and not a subterfuge to avoid employee status. A bona fide independent contractor status is further evidenced by the presence of cumulative factors such as substantial investment other than personal services in the business, holding out to be in business for oneself, bargaining for a contract to complete a specific project for compensation by project rather than by time, control over the time and place the work is performed, supplying the tools or instrumentalities used in the work other than tools and instrumentalities normally and customarily provided by employees, hiring employees, performing work that is not ordinarily in the course of the principal's work, performing work that requires a particular skill, holding a license pursuant to the Business and Professions Code, the intent by the parties that the work relationship is of an independent contractor status, or that the relationship is not severable or terminable at will by the principal but gives rise to an action for breach of contract.

In

addition to the factors contained in subdivisions (a), (b), and (c), any person performing any function or activity for which a license is required pursuant to Chapter 9 (commencing with Section 7000) of Division 3 of the Business and Professions Code shall hold a valid contractors' license as a condition of having independent contractor status."

(Cal. Labor Code § 2750.5.)

"To

show that a worker is an independent contractor, an employer has the burden to prove '(A) that the worker is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract

for the performance of the work and in fact; and (B) that the worker performs work that is outside the usual course of the hiring entity's business; and (C) that the worker is customarily engaged in an independently established trade, occupation, or business of the same nature as the work performed.' " (Parada v. E. Coast Transp. Inc. (2021) 62 Cal.App.5th 692, 698 (Parada).)

Determining whether a person is an employee or an independent contractor is generally a question of fact if it depends on resolving disputes in the evidence, but it can be decided as a matter of law if the evidence supports only one credible conclusion. (Vendor Surveillance Corp. v. Henning (2021) 62 Cal.App.5th 59, 75 (Henning).)

Rico's Burden

Plaintiff alleges that on May 4, 2023, a 2018 Ford Transit van driven by Salazar rolled into Plaintiff. Plaintiff further alleges that at the time of the incident, Salazar was performing work on Plaintiff's property while employed by Rico through IDS, such that Rico is vicariously liable for Plaintiff's injuries as Salazar's employer.

Rico argues that to prevail on Plaintiff's claim of vicarious liability against Rico, Plaintiff must prove that the driver, Salazar, was Rico's employee. Rico contends that Plaintiff cannot do so because the undisputed facts establish that Salazar was not Rico's employee but an independent contractor.

Rico puts forth the following material facts: On May 4, 2023, a 2018 Ford Transit van driven by Sergio Salazar rolled into Plaintiff. (Undisputed Material Fact ("UMF") No. 1.) At the time of the incident, Salazar was performing work on Plaintiff's property, helping to hook up the electricity. (UMF No. 2.) The incident occurred as Salazar was leaving Plaintiff's property in his personal vehicle. (UMF No. 3.) A video recording shows Salazar backing up in Plaintiff's driveway just prior to the incident. (UMF No. 4.) Salazar performed work on Plaintiff's property on only two dates: May 4, 2023, and one earlier date a few days before. (UMF No. 5.) Salazar was paid \$250.00 total for all work he performed at Plaintiff's property. (UMF No. 6.).

Rico is the owner and operator of IDS. (UMF No. 7.) At the time of the incident, IDS was

performing subcontract work on Plaintiff's property. (UMF No. 8.) Rico did not provide Salazar with any transportation, including the van involved in the incident. (UMF No. 9.) The van driven by Salazar was owned by Defendant Maria Quevedo-Topete. (UMF No. 10.) Quevedo-Topete is Salazar's wife. (UMF No. 11.) At the time of the incident, Rico had no business relationship with Maria Quevedo-Topete. (UMF No. 12.) The van driven by Salazar prominently displayed the logo and advertising of another company, New Generation Electric. (UMF No. 13.) Rico did not direct or control the method by which Salazar did his work. (UMF No. 14.) No document or established procedure gave Rico the right to direct or control Salazar's work. (UMF No. 15.) Rico had no direct oversight, management or supervisory role with respect to Salazar. (UMF No. 16.) Rico did not train Salazar in connection with the work at Plaintiff's house. (UMF No. 17.) Rico did not provide Salazar with tools or other equipment such as safety gear; Salazar provided his own tools at all relevant times. (UMF No. 18.) Salazar described his relationship to Rico not as an employee, but as helping Rico as a temporary assistant when requested. (UMF No. 19.)

Here, Rico puts forth sufficient material facts to establish that Salazar was an independent contractor rather than an employee at the time of the incident. First, Rico did not provide any transportation for Salazar, and the vehicle Salazar was driving at the time of the incident prominently displayed the logo and advertising of a different company, New Generation Electric. (UMF Nos. 10-13.) Further, Rico did not provide Salazar with tools or any other equipment such as safety gear; Salazar provided his own tools at all relevant times. (UMF No. 18.) Salazar also characterized himself as a temporary assistant, not an employee (UMF No. 19). These facts taken together show that Salazar performs work that is outside the usual course of Rico's business and that Salazar is customarily engaged in an independently established trade, occupation, or business of the same nature as the work performed, both of which are required to find as a matter of law that Salazar was an independent contractor. (Parada, supra, 62 Cal.App.5th at 698.)

Overall, Rico carries his initial burden to show as a matter of law that he is not vicariously liable for Salazar's conduct because Salazar was an independent contractor rather than an employee at the time of the incident. The burden now shifts to the opposing parties.

The Salazars and ARS's

Burden

ARS puts forth the following evidence in opposition: Rico stated in his deposition that Salazar works as an electrician. (Exhibit A, Rico Depo. at 23:15-19). Meanwhile, Rico through his own business, IDS, was hired to replace an electrical panel. (Exhibit A, Rico Depo. at 25:9-11) Rico brought on Salazar to assist him with this electrical work. (Exhibit A, Rico Depo. at 27:1-8; Exhibit C, Salazar Responses to Special Interrogatory No. 7) As of the date of the filing of this Opposition, Sergio Salazar has never been licensed as a contractor, or as an electrician. (Exhibit B, Screenshot of Contractor State License Board search results.)

The Salazars put forth the following evidence in opposition:

In 2017, Salazar was an employee of defendant Intelligent Design Solar, Inc. ("IDS"). (Salazar's Additional Facts ("SAF") 1.) At some point prior to 2023, IDS claims that it ceased having employees. (SAF 2.) Rico is unsure of the year, and testified that he was unaware of any documentation regarding this matter. (SAF 3.) This was not done with a formal separation between IDS and the employees. (SAF 4.) Rico states that it is common practice to simply find work elsewhere rather than formally quit or be let go from employment. (SAF 5.) In fact, all IDS work is either performed by Rico, the co-owner, or hired individuals. (SAF 6.) Payment to other people or individuals is remitted by cash, Zelle, or any payment form the other party prefers. (SAF 7.) IDS holds a C-10 license for electrical work. (SAF 8.) Rico performs work under the IDS license. (SAF 9.) Salazar does not have a C-10 license. (SAF 10.) The Lakme Avenue Project required a C-10 license. (SAF 11.) Any electrical work done on the Lakme Avenue Project, including by Salazar, was done under the IDS license. (SAF 12.)

Here, the Court finds that whether Salazar was an employee or an independent contractor cannot be decided as a matter of law on summary judgment here because the evidence does not support only one credible conclusion, making this a question of fact for a jury. (Henning, *supra*, 62 Cal.App.5th at 75.)

First, there is a controlling presumption under Labor Code section 2750.5 that any person performing any function or activity for which a license is required, or who is performing such services for a person who is required to obtain such a license, including electrician work as Salazar was

performing for Rico and IDS at the time of the incident, is an employee rather than an independent contractor. Labor Code section 2750.5 further provides that in order to rebut that presumption and show that such a worker was an independent contractor, the worker shall hold a valid contractors' license as a condition of having independent contractor status.

ARS and the Salazars put forth evidence that Salazar was not an independent contractor under Labor Code section 2750.5 because he did not have his own license as a contractor or as an electrician: IDS holds a C-10 license for electrical work. (SAF 8.) Rico performs work under the IDS license. (SAF 9.) Salazar does not have a C-10 license. (SAF 10.) The Lakme Avenue Project required a C-10 license. (SAF 11.) Any electrical work done on the Lakme Avenue Project, including by Salazar, was done under the IDS license. (SAF 12.) Based on this evidence, Salazar did not satisfy a necessary condition for having independent contractor status. The presumption that Salazar was an employee is thus controlling.

It is also further disputed whether Salazar was free from the control of Rico. Specifically, ARS meaningfully disputes that Rico did not direct or control the method by which Salazar did his work, putting forth evidence that the subcontractor agreement between ARS and IDS specified that Rico is responsible for his own employees as well as his own subcontractors, and Rico in hiring Salazar to assist with hooking up electricity, a task part of which Rico and IDS were hired by ARS to do, would have controlled how Salazar would assist with hooking up electricity.

The Salazars dispute this as well, arguing that but for Rico's request that Salazar assist Rico at Lakme Avenue, Salazar would not have appeared for work. The Salazars put forth evidence that (1) established practice between Rico and Salazar was that Rico would tell Salazar about a work project, and Salazar would show up to do the work; (2) Rico testified that he was the supervisor for the Lakme Avenue electrical work; and (3) the subcontractor agreement between ARS and IDS specifies that IDS is responsible for his employees and subcontractors.

The foregoing facts could create a reasonable, material question for the factfinder.

Thus, Rico's Motion for Summary Judgment is DENIED on the basis that Salazar was an independent contractor at the time of the incident.

B.

Whether

Rico is Liable for Salazar's Conduct Under the "Coming and Going" Rule

Rico further argues that even

assuming that Salazar was Rico's employee, Plaintiff's claim fails as a matter of law for the additional and alternative independent reason that the incident occurred while Salazar was coming or going to work.

"Under the going and coming rule,

employees traveling to and from work are considered outside the scope of employment and, therefore, employers are not liable for torts committed during the employee's commute." (Pierson v. Helmerich & Payne Internat.

Drilling Co. (2016) 4 Cal. App. 5th 608, 612.)

Here,

since it is disputed whether Salazar was an employee or independent contractor, the Court cannot find that the coming and going rule applies to bar Plaintiff's claims at this stage.

Thus, Rico's Motion for

Summary Judgment is DENIED on the basis of the coming and going rule.

CONCLUSION

Defendant Jose Rico's Motion for Summary

Judgment is DENIED.